

CONVEYANCING PROTOCOL

Questions for Seller of Residential Property

1	Are you the registered owner of the property? If not, who is?	Yes ☐ No ☐
2	Will you be signing the transfer under a Power of Attorney? If yes, is the Power of Attorney registered in the Titles Office?	Yes ☐ No ☐ Yes ☐ No ☐
3	If property is in the name of a corporation, are two directors or a director and secretary available to sign the transfer?	Yes ☐ No ☐
4	Is the property mortgaged? If so, with whom?	Yes ☐ No ☐
5	Do you know of any unregistered encumbrances or interests affecting the property such as sewerage or drainage easements?	Yes ☐ No ☐
6	Have you received any notices from the local authority requiring you to undertake work on the property?	Yes ☐ No ☐
7	Have safety switches been installed?	Yes ☐ No ☐
8	Is there a current tenant in the property? If yes, will they be vacating prior to completion?	Yes ☐ No ☐ Yes ☐ No ☐
9	Are any fixtures excluded from the sale? If yes, give details.	Yes ☐ No ☐
10	Is the property heritage listed?	Yes ☐ No ☐
11	Have you performed any construction on the property as an owner/builder? If yes, when?	Yes ☐ No ☐
12	If property is not mortgaged, does a paper certificate of title exist? If yes, where is it presently held?	Yes ☐ No ☐
13	Have rates for the last period been paid on the property? If yes, please forward a copy of receipt. If not, please forward a copy of invoice.	Yes ☐ No ☐
14	Is land tax payable on the property? If yes, until what date has it been paid? Please provide receipt.	Yes ☐ No ☐
15	If seller is a corporation, is the property subject to a company charge? If yes, give name and address of lender.	Yes ☐ No ☐
16	Do you hold keys or access cards to locks on the property? They will need to be available at settlement.	Yes ☐ No ☐
17	Are the improvements on the property insured?	Yes ☐ No ☐
18	Do you know of unsatisfied judgements, orders or warrants of execution affecting the property?	Yes ☐ No ☐
19	Do you know of current threat, claim, notice or any proceedings affecting the property?	Yes ☐ No ☐
20	Do you know of any obligation upon you to give notice under the <i>Environmental Protection Act 1994</i> of a notifiable activity being conducted on the land?	Yes ☐ No ☐
21	Are you aware of any facts or circumstances that may lead to the land being classified as contaminated?	Yes ☐ No ☐
22	Are you aware of any encroachments on to the land or from the land?	Yes ☐ No ☐
23	Have you received notice of any proposal to alter the dimensions of any road or railway abutting the land or to locate a road or railway through the land?	Yes ☐ No ☐
24	Are you aware of access or service to the land which passes unlawfully through other land?	Yes ☐ No ☐
25	Does any dwelling on the property have complying smoke alarms?	Yes ☐ No ☐

Signed by seller/s: _____

Date: _____

These answers must be returned to your solicitor as soon as possible.